



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

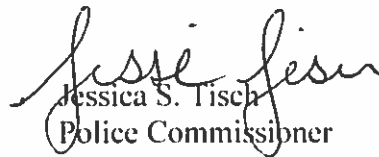
Re: Disciplinary Case No. 2023-28951 / PODS Case No. C-031557 regarding Police Officer Joseph Cosolito, Tax No. 958441

Date: August 20, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Cosolito used offensive language and was discourteous towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Cosolito will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ZOHRAN MAMDANI
MAYOR

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PAT SMITH
INTERIM CHAIR

January 9, 2026

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Joseph Cosolito (Tax Reg #950666, DADS #2023-28951)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charges along with a penalty of Training was agreed upon and signed by all parties on November 5, 2025 and was endorsed by Assistant Deputy Commissioner Paul M. Gamble on December 23, 2025.

On April 27, 2022, the complainant went to the 13th Precinct in Manhattan to seek assistance concerning her housing situation. While there, she was told by personnel that they were not able to help with her issue, as it was not a criminal matter. The complainant became upset with this response and started acting erratically. Based on how she was behaving, a decision was made to call her an ambulance.

BWC captures Officer Cosolito stating to the complainant during the incident, "So, I'm gonna guess Bellevue knows you, probably by name." This statement was discourteous and was an offensive statement based upon the complainant's actual or perceived mental health status, and served no legitimate police function.

On December 23, 2025, in return for an acceptance by Officer Cosolito of the findings regarding the specifications pursuant to a Negotiated Settlement, the CCRB recommended a dismissal of the specifications with the further recommendation that Officer Cosolito receive Training, a downward departure for the offensive language charge. This recommendation is due to Officer Cosolito's ten years of service and lack of any prior disciplinary history. Therefore,

given the totality of the circumstances, the CCRB recommends dismissal of the specifications with the additional recommendation that Officer Cosolito receive Training.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board